

American Securities Association et al. v. United States Securities and Exchange Commission,
Case No. 23-13396

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

CERTIFICATE OF INTERESTED PERSONS

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-1, the undersigned counsel of record for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc., which anticipate filing a motion to intervene in this appeal on November 16, 2023, certifies that the persons identified in the Certificate of Interested Persons filed by Petitioners, ECF No. 6, and the additional persons listed below are currently known to have an interest in the outcome of this case:

1. **ArentFox Schiff LLP**; counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc., which each intend to move to intervene in this matter by November 16, 2023.
2. **BOX Exchange LLC**; member and participant of CAT LLC.
3. **Cboe BYX Exchange, Inc.**; member and participant of CAT LLC.
4. **Cboe BZX Exchange, Inc.**; member and participant of CAT LLC.
5. **Cboe C2 Exchange, Inc.**; member and participant of CAT LLC.
6. **Cboe EDGA Exchange, Inc.**; member and participant of CAT LLC.

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7. **Cboe EDGX Exchange, Inc.**; member and participant of CAT LLC.
8. **Cboe Exchange, Inc.**; member and participant of CAT LLC.
9. **Cboe Global Markets, Inc., (ticker symbol: CBOE)**; direct or indirect parent company of Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
10. **CONSOLIDATED AUDIT TRAIL, LLC (“CAT LLC”)**; the CAT National Market System Plan (“CAT NMS Plan”) is a national market system plan approved by the Securities and Exchange Commission. The CAT NMS Plan functions as the limited liability company agreement of CAT LLC, a jointly owned limited liability company formed under Delaware state law through which the participants conduct the activities of the CAT NMS Plan.
11. **Financial Industry Regulatory Authority, Inc.**; member and participant of CAT LLC.
12. **Greenwalt, Paul, III**; counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
13. **Investors’ Exchange, LLC**; member and participant of CAT LLC.

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14. **Long-Term Stock Exchange, Inc.**; member and participant of CAT LLC.
15. **MEMX LLC**; member and participant of CAT LLC.
16. **Miami International Securities Exchange LLC**; member and participant of CAT LLC.
17. **MIAX Emerald, LLC**; member and participant of CAT LLC.
18. **MIAX PEARL, LLC**; member and participant of CAT LLC.
19. **Molzberger, Michael**; counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
20. **NASDAQ BX, Inc.**; member and participant of CAT LLC.
21. **NASDAQ GEMX, LLC**; member and participant of CAT LLC.
22. **NASDAQ ISE, LLC**; member and participant of CAT LLC.
23. **NASDAQ MRX, LLC**; member and participant of CAT LLC.
24. **NASDAQ PHLX LLC**; member and participant of CAT LLC.
25. **New York Stock Exchange LLC**; member and participant of CAT LLC.
26. **NYSE American LLC**; member and participant of CAT LLC.
27. **NYSE Arca, Inc.**; member and participant of CAT LLC.

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28. **NYSE Chicago, Inc.**; member and participant of CAT LLC.
29. **NYSE National, Inc.**; member and participant of CAT LLC.
30. **The NASDAQ Stock Market LLC**; member and participant of CAT LLC.
31. The Vanguard Group, Inc.; owned 10% or more of Cboe Global Markets, Inc.'s common stock as of June 30, 2023.

Dated: November 14, 2023

Respectfully submitted,

/s/ Paul E. Greenwalt III

Paul E. Greenwalt III

Michael K. Molzberger

ARENTFOX SCHIFF LLP

233 S. Wacker Dr., Suite 7100

Chicago, IL 60606

(312) 258-5702

paul.greenwalt@afslaw.com

michael.molzberger@afslaw.com

*Counsel for Cboe BYX Exchange,
Inc., Cboe BZX Exchange, Inc., Cboe
EDGA Exchange, Inc., Cboe EDGX
Exchange, Inc., Cboe C2 Exchange,
Inc., and Cboe Exchange, Inc.*

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CORPORATE DISCLOSURE STATEMENT

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-2, the undersigned counsel of record certifies that Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc. are each a direct or indirect wholly-owned subsidiary of Cboe Global Markets, Inc. (CBOE), a public company. Cboe Global Markets, Inc. has no parent corporation. A third party's review of public filings indicates that The Vanguard Group, Inc. owned 10% or more of Cboe Global Markets, Inc.'s common stock as of June 30, 2023. Undersigned counsel anticipates receiving updated ownership information for Cboe Global Markets, Inc. on or around November 15, 2023. Future filings may therefore be accompanied by a Corporate Disclosure Statement that has different ownership information than provided today.

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Respectfully submitted,

/s/ Paul E. Greenwalt III

Paul E. Greenwalt III

Michael K. Molzberger

ARENTFOX SCHIFF LLP

233 S. Wacker Dr., Suite 7100

Chicago, IL 60606

(312) 258-5702

paul.greenwalt@afslaw.com

michael.molzberger@afslaw.com

*Counsel for Cboe BYX Exchange,
Inc., Cboe BZX Exchange, Inc., Cboe
EDGA Exchange, Inc., Cboe EDGX
Exchange, Inc., Cboe C2 Exchange,
Inc., and Cboe Exchange, Inc.*